

25VECV06169 25VECV06169

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-09-22

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Case Number: 25VECV06169 Hearing Date: September 22, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

SIMON MIKAIL, an Individual,

Plaintiff,

vs.

SECURAL

SECURITY CORP., a California Corporation; BRUNO M. UNDERWOOD, an Individual;
and DOES 1-50,

Defendants.

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HISTORY

On October

27, 2025, Plaintiff filed a Complaint.

On November

18, 2025, Plaintiff filed a First Amended Complaint ("FAC") alleging (1) Motor Vehicle Negligence; (2) General Negligence; (3) Assault; (4) Battery; and (5) Intentional Infliction of Emotional Distress.

On July 8,

2026, the Court entered default against Underwood.

On July 23,

2026, Underwood filed the instant Motion.

On September

3, 2026, Plaintiff filed an Opposition.

On September

10, 2026, Underwood filed a Reply.

III.

LEGAL STANDARD

A.

Discretionary or Mandatory Relief –

Code of Civil Procedure § 473(b)

"The court

may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken..." (Code Civ. Proc. § 473(b).) [1]

Code of Civil

Procedure § 473(b) "provides for both discretionary and mandatory relief.

[Citation.]" (Pagnini v. Union Bank, N.A. (2018) 28 Cal.App.5th 298,

302.) For discretionary relief, “[t]he court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc. § 473(b).)

A moving

party need only establish “mistake, inadvertence, surprise, or excusable neglect” by a preponderance of the evidence. (*Luz v. Lopes* (1960) 55 Cal.2d 54, 62.) Excusable neglect exists where counsel or the party acted as a reasonably prudent person would under the circumstances. (See *Hearn v. Howard* (2009) 177 Cal.App.4th 1193, 1206; See also *Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249, 258.)

An

application for discretionary or mandatory relief must be made no more than six months after entry of the judgment, dismissal, order, or other proceeding from which relief is sought. (See Code Civ. Proc. § 473(b); see also *English v. IKON Bus. Solutions* (2001) 94 Cal.App.4th 130, 143.)

IV.

ANALYSIS

Underwood

moves to set aside default. Underwood attests he was served at his home on April 30, 2026, though he would not be home for another two months. (See Declaration of Bruno Underwood filed July 23, 2026 (“Underwood Decl.”), ¶ 3.) At this time, Underwood contacted his employer regarding the documents left at his residence. (See *id.*, ¶ 4.) Underwood understood his employer would be covering him on this case until July 9, 2026, when he learned he needed to obtain counsel. (See *id.*, ¶¶ 5-6, 8.) Underwood attests he obtained counsel on July 16, 2026. (See *id.*, ¶ 9.) Underwood argues he reasonably relied on his employer’s assurances they would cover him in this action and was surprised to learn on July 9, 2026, that they were not. (See Mot. at 4:12-25.) Underwood argues there is no prejudice to Plaintiff as default was recently entered. (See *id.*, at 5:6-13.) Underwood attaches a copy of his proposed answer. (See Mot., Ex. 3.)

Plaintiff

argues Underwood has not shown grounds for relief under § 473(b) based on his voluntary inaction. Plaintiff argues Underwood's claimed reliance on his employer is insufficient to establish surprise or excusable neglect because he was expressly advised that he could still be sued personally and his declaration does not identify any person who affirmatively told him that an attorney had been retained for him, that an insurer had accepted his individual defense, or that he was free to disregard the Summons. (See id., at 6:25-7:19, 9:15-27.) Alternatively, if the Motion is granted, Plaintiff requests relief be conditioned upon Underwood's payment of \$4,560.00 in reasonable attorney's fees and costs pursuant to § 473(c)(l)(C).[2] (See Opp. at 3:21-4:1, 12:2-12.)

In reply,

Underwood argues he reasonably relied on his employer's representations that they would cover him in this action and given that he was not in receipt of the physical documents. (See Reply at 4:21-24.) Underwood argues he diligently obtained counsel after learning he was not covered by his employer and that default had been entered against him. (See id.)

The Court

will grant the Motion. "Because the law favors disposing of cases on their merits, 'any doubts in applying section 473 must be resolved in favor of the party seeking relief from default...'" (Rappleyea v. Campbell (1994) 8 Cal.4th 975, 980.) "Where a default is entered because defendant has relied upon a codefendant or other interested party to defend, the question is whether the defendant was reasonably justified under the circumstances in his reliance or whether his neglect to attend to the matter was inexcusable...With regard to whether the circumstances warranted reliance by the defendant on a third party, the efforts made by the defendant to obtain a defense by the third party are, of course, relevant.... Even if the mistake were caused by some negligence on defendant's part, this negligence might be excused if it in no way prejudiced the opposing party.'" (Fasuyi v. Permatex, Inc. (2008) 167 Cal.App.4th 681, 697 citing Weitz v. Yankosky (1966) 63 Cal.2d 849, 855-56.)

Here, it

appears Underwood conflated his employer's affirmative confirmation to his

question that the company's insurance would be overseeing him as an employee with confirmation they would be representing him on an action brought against him individually. (See Underwood Decl., ¶¶ 5-6.) The Court finds Underwood acted reasonably in assuming his employer was legally covering him in this action upon relying on his employer's confirmation that their insurance would be "overseeing him as an employee". Underwood promptly obtained counsel upon returning to his residence and learning from a mailed letter that default had been entered against him and his employer was not representing him. (See id., ¶¶ 7-9.) Further, there is no showing plaintiff was in any way prejudiced by defendant's failure to answer on time. Accordingly, the Court GRANTS Underwood's Motion to Set Aside Default. The Court denies Plaintiff's request for attorney fees pursuant to Code of Civil Procedure § 473(c)(1)(C).

V.

CONCLUSION

Based on the foregoing, the Court GRANTS Underwood's Motion to Set Aside Default. The Court denies Plaintiff's request for attorney fees pursuant to Code of Civil Procedure § 473(c)(1)(C).

Underwood is ordered to file his Answer on or before September 24, 2026.

IT

IS SO ORDERED.

DATED: September 21, 2026

Hon. Michael R. Amerian

Judge,
Superior Court

[1] All statutory references are to California codes unless stated otherwise.

[2] "Whenever the court grants relief from a default" it may "[g]rant other relief as is appropriate." (Code Civ. Proc. § 473(c)(1)(C).)